

Briefing & Instruction Memorandum for Legal Counsel

To: Legal Counsel / Practicing Company Secretary
From: Atreya Ghoshal, Founder & Proposed First Director
Date: October 6, 2026
Subject: Formal Instructions for Incorporation of Mentis Mathematics Foundation as a Section 8 Company in West Bengal

Dear Counsel,

Following our online discussion yesterday, this memorandum conveys our finalized statutory drafting, governance architecture, and formal filing instructions for incorporating **Mentis Mathematics Foundation** as a non-profit company under Section 8 of the Companies Act, 2013 (read with Rule 19 of the Companies (Incorporation) Rules, 2014) under the jurisdiction of the Registrar of Companies (RoC), West Bengal, Kolkata.

1. Core Filing Parameters & Statutory Boundaries

Statutory Parameter	Filing Specification
Proposed Corporate Name	1st Preference: MENTIS MATHEMATICS FOUNDATION 2nd Preference: COGNORA MATHEMATICS FOUNDATION
Registered Office Jurisdiction	State of West Bengal, India (Registrar of Companies, Kolkata)
Capital Structure	Company Limited by Shares (Proposed Authorized Capital: ₹1,00,000 divided into 10,000 equity shares of ₹10 each, or as advised by Counsel)
First Directors & Subscribers	Strictly & Exclusively: 1. Atreya Ghoshal (Founder & First Director) 2. Aritra Ghoshal (Co-Founder & First Director)
Digital Signature Certificates (DSC)	Class 3 DSCs to be procured and registered on MCA V3 for Atreya Ghoshal & Aritra Ghoshal.

2. Strict Statutory Liability Insulation for Team Members & Advisors

MANDATORY INSTRUCTION: Do NOT include Drashti Tailor, Navya Negi, Shail Raj Vardhan, Sarthak Sharma, or Dr. Kalpana Sharma as First Directors, Subscribers, or statutory signatories in Form INC-13, Form INC-31, or the SPICe+ webform.

Our team includes distinguished student leaders and academic mentors who hold vital operational roles in our Foundation (as detailed in Document 3). However, to protect them from statutory liabilities, compliance obligations, regulatory filings, and director-level legal exposure, their appointments will be executed **strictly post-incorporation through internal Board Resolutions and executive engagement charters**. This ensures clean, swift MCA approval without delaying the incorporation process.

3. Comprehensive Objects Clause Scope (Form INC-13, Clause III.A)

We have drafted **8 broad, future-proof Main Objects** in Form INC-13 (attached as Document 2). While pure and applied mathematics forms our foundational anchor, our objects deliberately encompass natural and fundamental sciences (physics, chemistry, biology), interdisciplinary STEM innovation, educational olympiads/workshops, research incubation/fellowships, open-access digital platforms, academic publishing, and global institutional collaborations.

4. Mandatory Enabling Clauses in Articles of Association (Form INC-31 e-AOA)

Please ensure that the Articles of Association (Form INC-31) explicitly incorporate the following enabling provisions:

- 1. **Advisory Council Clause:** Empowering the Board of Directors to constitute an Academic Advisory Council, appoint distinguished scholars (such as Dr. Kalpana Sharma), and frame advisory guidelines.
- 2. **Executive Operational Committees:** Authorizing the Board to appoint non-director Executive Heads, Programme Coordinators, and operational leads without statutory director liabilities.
- 3. **Remuneration for Actual Services Rendered:** Enabling the Foundation, pursuant to Section 8(1) and the proviso to Clause IV of the MOA, to disburse reasonable and proper remuneration/salaries to directors for actual full-time executive, technological, and administrative services.

5. Procedural Checklist & Immediate Action Items

- 1. Initiate Class 3 DSC issuance for Atreya Ghoshal and Aritra Ghoshal.
- 2. File SPICe+ Part A for Name Reservation of **MENTIS MATHEMATICS FOUNDATION** (with *COGNORA MATHEMATICS FOUNDATION* as 2nd preference).
- 3. Review the 8 Main Object clauses in Form INC-13 e-MOA and confirm adoption.
- 4. Prepare the SPICe+ Part B incorporation dossier, including Form DIR-2, INC-9, and AGILE-PRO-S (PAN, TAN, EPFO, ESIC, Bank A/c).

ATREYA GHOSHAL Founder & Proposed First Director Mentis Mathematics Foundation	ARITRA GHOSHAL Co-Founder & Proposed First Director Mentis Mathematics Foundation
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